

File No.: EXP202302843

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by Ms. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated September 7, 2023, and based on the following:

FACTS

FIRST: On September 7, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202302843, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on September 22, 2023, as evidenced by the acknowledgment of receipt in the file.

SECOND: The appellant submitted, on October 13, 2023, a reconsideration appeal to this Spanish Agency for Data Protection, fundamentally based on the following:

That the reported company PAPERNEST INTERNATIONAL, S.L. continues to process her identifying and contact personal data, specifically her name and surname contained in the email address, without any legitimacy for that processing, as the employment relationship ended months ago.

That the company has overlooked the duty of confidentiality that must be maintained in the event that internal communications reporting malpractice within the company are carried out.

In the text of the contested resolution, it is already indicated that at the time, PAPERNEST INTERNATIONAL, S.L. was required to respond to the alleged facts and that the company did not respond to that request. Thus, instead of considering the evidence provided along with her complaint as valid, it is considered that there is insufficient evidence to prove that the reported party is acting contrary to data protection regulations, and instead of considering the evidence provided by the claimant and now appellant, a resolution is issued without further ado agreeing to archive the proceedings, thereby preventing her from exercising her right to defense.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted:

Both in the complaint filed and in the reconsideration appeal, it is indicated that the reported company continues to process her data, even though she left her job months ago. The reported company responded that they only retain the data necessary to complete the 2022 income tax declaration with the Tax Agency: name and surname, payslips from the year 2022, Social Security number, and her ID. They also indicate that they have deleted all information that they no longer need. That is to say, they are processing the necessary data required by the applicable regulations, among others, the employer's tax regulations.

Regarding the use of her email provided by the company, no evidence of use was presented.

In relation to the information from human resources to the superior of the now appellant regarding the reason for leaving the company, the processing of information occurs within the labor framework, informing the appellant's supervisor of the reason for leaving the company, related to the very way of working of this supervisor. Therefore, the processing of that labor data is necessary to understand the causes of the termination of the appellant's employment relationship, being a legitimizing cause for that processing, as established by Article 6.1.b) of the GDPR. Confidentiality, to which the company and the individuals processing data (HR) are obliged, has not been lost since it has been used within the labor framework.

Finally, the alleged defenselessness has not occurred since the resolution has substantiated the

archiving of her complaint and the regulations on which that archiving is based, without the grounds for the archiving being rebutted in the appeal.

III

Conclusion

Consequently, in the present reconsideration appeal, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on September 7, 2023, in file EXP202302843.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/3

3/3

SECOND: NOTIFY the present resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

181-111122

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es